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PART ONE

The Classic Debate: Natural Law and Political Realism

The Ethics of War and Peace in the Catholic Natural Law Tradition

John Finnis

PEACE AND WAR

Law, and a legalistic morality and politics, can define peace and war by their mutual opposition. Any two communities are either at peace or at war with one another. If they are at war, each is seeking a relationship to the other (“victory over,” “prevailing over”) which that other seeks precisely to frustrate or overcome. If they are at peace, each pursues its own concerns in a state of indifference to, noninterference in, or collaboration with the concerns of the other.

But sound moral and political deliberation and reflection is not legalistic. Despite some tendencies towards legalism, the Catholic tradition of natural law theory very early articulated and has steadily maintained a richer and more subtle conception of peace and war. From the outset, the philosophers in the tradition have accepted that social theory (a theory of practice) should have a distinct method, appropriate to its uniquely complex subject matter. It should not seek to articulate univocal terms and concepts which, like the concepts a lawyer needs, extend in the same sense to every instance within a clearly bounded field. Rather, it should identify the central cases of the opportunities and realities with which it is concerned, and the focal meanings of the terms which pick out those opportunities and realities. What is central, primary, and focal, and what peripheral, secondary, and diluted, is a function of (that is, is settled by reference to) what is humanly important, which in turn is a function of what are the good reasons for choice and action. So there are central and secondary forms of community, of friendship, of constitution, of the rule of law, of citizenship—and of peace. The secondary forms are really instances. But a reflection which focuses on them will overlook much that is important both for conscientious deliberation (practice) and for a fully explanatory reflection (theory).

So: to describe or explain peace as the absence of war is to miss the important reasons why, as the tradition affirms, peace is the point of war. That affirmation is not to be taken in the diluted and ironical sense of the Tacitean *solitudinem faciunt pacem appellant*.¹ The tradition knows well

enough that wars are sometimes, in fact, waged to annihilate, out of hatred or sheer delight in inflicting misery, destruction, and death, and that even such wars can be said to be “for the sake of peace,” that is, for the inner peace of satiation of desire and the outward peace of an unchallenged mastery over one’s domain.² But even the inner peace attainable by such means is partial, unstable, and unsatisfying, and the peace of an unfair and cruel mastery is deeply disordered and deficient. More adequately understood, peace is the “tranquillity of order,” and “order is the arrangement of things equal and unequal in a pattern which assigns to each its proper position.”³

But a definition of peace in terms of things resting tranquilly in their proper places still fails to articulate the peace which could be the point of war. It remains too passive. The account needs to be supplemented by, indeed recentered on, what Augustine had treated as primary in the two immediately preceding sentences: *concordia* and *societas*, concord and community. For concord is agreement and harmony in willing, that is, in deliberating, choosing, and acting, and community is fellowship and harmony in shared purposes and common or coordinated activities. Peace is not best captured with metaphors of rest. It is the fulfillment which is realized most fully in the active neighborliness of willing cooperation in purposes which are both good in themselves and harmonious with the good purposes and enterprises of others.

Peace, then, is diminished and undermined generically by every attitude, act, or omission damaging to a society’s fair common good—specifically, by dispositions and choices which more or less directly damage a society’s concord. Such dispositions and choices include a proud and selfish individualism, estranged from one’s society’s (or societies’) concerns and common good;⁴ contentiousness, obstinacy, or quarrelsomeness;⁵ feuding with one’s fellow citizens⁶ and sedition against proper authority;⁷ and, most radically, war.

To choose war is precisely to choose a relationship or interaction in which *we* seek by lethal physical force to block and shatter at least some of *their* undertakings and to seize or destroy at least some of the resources and means by which they could prosecute such undertakings or resist our use of force.⁸ (Do not equate “lethal” with “intended to kill”: see under “Attitudes toward War and Nonviolence” below.) In the paradigm case of war, the *we* and the *they* are both political communities, acting as such—what the tradition called “complete or self-sufficient (*perfectae*) communities.” But there are only “material,” not “formal” (essential, morally decisive), differences between that paradigm case (“war” strictly so called) and other cases:⁹ the war of a political community against pirates; the revolt of part of a political community against their rulers, or the campaign of the rulers against some part of their community, or some other form of civil war; the

armed struggle of a group or individual against gangsters, bandits, or pirates; the duel of one person against another. In each case, the relationship and interactions between *us* and *them* which we bring into being in choosing to go to war replace, for the war's duration, the neighborliness and cooperation which might otherwise have subsisted between us and them. But the tradition teaches that a choice of means which involves such a negation of peace (of concord, neighborliness, and collaboration) cannot be justified unless one's purpose (end) in choosing such means includes the restoration, and if possible the enhancement, of peace (concord, neighborliness, and collaboration) as constitutive of the *common* good of the imperfect community constituted by any two interacting human societies.¹⁰

This requirement of a pacific intention is, for the tradition, an inescapable implication of morality; it is entailed by the truly justifying point of any and every human choice and action. For peace, in its rich central sense and reality, is materially synonymous with the ideal condition of integral human fulfillment—the flourishing of all human persons and communities.¹¹ And openness to that ideal, and the consistency of all one's choices with such openness, is the first condition of moral reasonableness.¹²

In the classic sources of the tradition, that primary moral principle is articulated not as I have just stated it, but as the principle that one is to love one's neighbor as oneself, a principle proposed as fundamental not only to the Gospel law but also to the natural law, to practical reasonableness itself.¹³ Accordingly, the tradition's classic treatments of war are found in the treatises on *caritas*, precisely on love of neighbor.¹⁴ Justice removes obstacles to peace, and is intrinsic to it, but the direct source of peace is love of neighbor.¹⁵ And war is to be for peace.¹⁶

For true peace, not a false or seeming peace. War might often be averted by surrender. But the peace thus won would often be a false peace, corrupted and diluted by injustices, slavery, and fear. Preserving, regaining, or attaining true peace can require war (though war will never of itself suffice to achieve that peace¹⁷).

MOTIVE OR INTENTION

An act, a deed, is essentially what the person who chooses to do it intends it to be. Intention looks always to the point, the end, rather than to means precisely as such; intention corresponds to the question, "Why are you doing this?" But any complex activity is a nested order of ends which are also means to further ends: I get up *to* walk to the cupboard *to* get herbs *to* make a potion *to* drink *to* purge myself *to* get slim *to* restore my health *to* prepare for battle *to*. . . .¹⁸ So, though intention is of ends, it is also of all the actions which are means.

English lawyers try to mark the distinction between one's more immedi-

ate intentions and one's further intentions by reserving the word "motive" for the latter. The spirit in which one acts, the emotions which support one's choice and exertions, can be called one's motives, too, but become the moralist's direct concern only if and insofar as they make a difference to *what* is intended and chosen. If the proposal one shapes in deliberation and adopts by choice is partly molded by one's emotional motivations (more precisely, by one's intelligence in the service of those emotions), then those motivations are to be counted among one's intentions (and motives), help make one's act what it is, and fall directly under moral scrutiny.

A war is just if and only if it is right to choose to engage in it. A choice is right if and only if it satisfies all the requirements of practical reasonableness, that is, *all* relevant moral requirements. If one's purpose (motive, further intention) is good but one's chosen means is vicious, the whole choice and action is wrong. Conversely, if one's means is upright (say, giving alms to the poor) but one's motive—one's reason for choosing it—is corrupt (say, deceiving voters about one's character and purposes), the whole choice and action is wrong. The scholastics had an untranslatable maxim to make this simple point: *bonum ex integra causa, malum ex quocumque defectu*, an act will be morally good (right) if what goes into it is entirely good, but will be morally bad (wrong) if it is defective in *any* morally relevant respect (bad end, or bad means, or inappropriate circumstances). Treatises on just war are discussions of the conditions which must *all* be satisfied if the war is to be just.

The preceding three paragraphs enable us to see that, in the tradition, no clear or clearly relevant distinction can be drawn between "grounds for" war and "motive or intention" in going to war. The proper questions are always: What are good reasons for going to war? What reasons must not be allowed to shape the proposal(s) about which I deliberate, or motivate my adoption of a proposal?

In the first major treatise on war by a philosophical theologian (as opposed to a canonist), Alexander of Hales (c. 1240) identifies six preconditions for a just war. The person declaring war must have (1) the right *affectus* (state of mind) and (2) authority to do so; the persons engaging in war must (3) not be clerics, and must have (4) the right *intentio*; the persons warred upon must (5) deserve it (the war must have *meritum*); and there must be (6) *causa*, in that the war must be waged for the support of the good, the coercion of the bad, and peace for all.¹⁹ Here the word *causa* is less generic than in the maxim *bonum ex integra causa*, but less specific than in Aquinas's discussion of just war, about thirty years later. Aquinas (c. 1270) cuts the preconditions down to three: authority, *causa iusta*, and *intentio recta*. Aquinas's *causa* is essentially what Alexander of Hales had called *meritum*. There is a just *causa*, says Aquinas, when those whom one attacks deserve (*mereantur*) the attack on account of their culpability; just wars are

wars for righting wrongs, in particular a nation's wrong in neglecting to punish crimes committed by its people or to restore what has been unjustly taken away.²⁰

Thus it is clear that, in Aquinas, the term *causa* is not equivalent to "a justifying ground." Rather, it points to something more like the English lawyer's "cause of action," a wrong cognizable by the law as giving basis for a complaint, a wrong meriting legal redress. As Francisco Suarez notes, 350 years later, a discussion of such *iustae causae* for war is primarily a discussion of the justifying grounds for war *other than* self-defense:²¹ to act in self-defense really needs no *causa*. (Throughout I shall follow Article 51 of the UN Charter in using the term "self-defense" to include all cases of justifiable defense, *légitime défense*.) So there is an important difference between a present-day inquiry into the justifying grounds for war and a medieval inquiry into *iusta causa*. Aquinas had more reason to distinguish (as he firmly does²²) between *causa* (in his sense) and *intentio* than we now have to distinguish between "ground" and "motive or intention."

Is there nonetheless some room, in considering the rightness of initiating or participating in a war or act of war, for an inquiry into the spirit or sentiment in which a people, an official, or a citizen acts? Perhaps there is. We might draw a distinction between "grounds" and "spirit" by recalling that war is paradigmatically a social and *public* act. Now, just as an individual's act or deed is essentially what the person who chooses to do it intends it to be, so the acts of a society are essentially what they are defined to be in the public policy which members of the society are invited or required to participate in carrying out. That defining policy, which organizes the *actions* of individual participants in a war (thus constituting their acts a social act),²³ and does so by more or less explicit reference to war aims and strategy, can often be distinguished both from any accompanying propaganda and from the emotions and dispositions of the leaders who shaped and adopted it. Thus individual citizens can, in principle, assess the public policy, the announced reasons for going to war, the announced war aims, and the adopted strategy (so far as they know it) and assess the justice of the war (taking into account the facts about the enemy's deeds, operations, and plans so far as they can discover them). Such an assessment can set aside the moral deficiencies of the society's leaders, except insofar as those deficiencies—manifest bellicosity, vengefulness, chauvinism, and the like—should be taken into account in judging the truth of the leaders' claims about facts and about the absence of suitable alternatives to war.

Notice that this does not carry us very far. Individual citizens have (in varying measure) some duty to consider the justice of the war, even if there is a weighty presumption in favor of accepting the public policy; in carrying out that duty, they must not allow themselves to be swayed by exciting but evil motivations: "the craving to hurt people, the cruel thirst

for revenge, a bellicose and unappeasable spirit, ferocity in hitting back, lust for mastery, and anything else of this sort.”²⁴ The same goes for the leaders: the shaping and adoption of their choice to go to war, of their war aims, and of their strategy will be wrongful if *affected* by any such seductive emotions.

Yet that malign influence might (and perhaps not infrequently does) remain undetectable by those who are called upon to participate in the war. To these citizens, the grounds for war, and the war aims and strategy which provide the grounds for particular operations, may reasonably seem morally acceptable. Indeed, those grounds may sometimes *be* morally acceptable even when the leaders of the society would in fact not have acted on them but for their own immoralities of disposition (“spirit”) and motivation (“intention”).

GROUNDS FOR WAR

It is primarily by harnessing reason to devise rationalizations that emotions create temptations to injustice (and to other immoralities). Rationalizations are plausible grounds which make proposals for choice and action attractive to reason and will but which, in truth (as indeed the deliberating or reflecting agent could discern), fail to satisfy all the requirements of practical reasonableness. As we have seen, the first such requirement is openness to integral human fulfillment, articulated in the tradition as love of neighbor as oneself. (The tradition—even, tentatively, in its purely philosophical articulations²⁵—adds, “Out of love of God, source of the very being and life of self and neighbor alike.”) All other moral principles are specifications, more and less general, of this primary moral principle. One of the most immediate specifications is the Golden Rule of fairness, in each of its forms, positive and negative: do to/for others as you would have them do to/for you; do not do to others what you would not be willing to have them do to you. This in turn is specified in the presumptive obligations to keep promises, to respect the domain and goods of others, to compensate for wrongful harm, and so forth. And these obligations in turn rule out a good many alleged grounds for war.

Sifting the types of reason put forward to justify or explain a decision to fight, the tradition became clear that only two could justify such a decision: self-defense, and the rectification (punitive or compensatory/restitutionary) of a wrong done.

Aquinas runs the two grounds together in a single, foundational proposition: “Just as rulers rightly use the sword in lawful *defense* against those who disturb the peace within the realm, when they *punish* criminals . . . so too they rightly use the sword of war to *protect* their polity from external enemies.”²⁶ Later scholastics, such as Vitoria (c. 1535) and Suarez (c. 1610),

while not repudiating Aquinas's resort to arguments which assimilate defense to punishment, do distinguish between defensive and offensive wars: war is self-defensive if waged to avert an injustice still about to take place; it is offensive if the injustice has already occurred and what is sought is redress.²⁷ And while they consider self-defense a ground so obviously just that it scarcely needs argument,²⁸ they consider offensive wars to be justified basically by the justice of retribution (*vindicatio*).²⁹ An offensive war is like the action of the police in tracking down and forcing the surrender of criminals within the jurisdiction, action assimilated (in this line of thought) with the action of the judge and the jailer or executioner.

As so often, Suarez's care brings nearer to the surface of the discussion an issue which seems to me to present the tradition with a notable difficulty. Private persons may forcibly defend themselves,³⁰ but "a punishment inflicted by one's own private authority is intrinsically evil," that is, it is wrong in all circumstances, even when one cannot get retributive or compensatory justice from a judge.³¹ (For punishment is essentially the restoration of a fair balance between the offender and the law-abiding, a balance which the commission of an offense disturbs by enacting the offender's willingness to take the advantage of doing as one pleases when the law requires a common restraint; and persons who are not responsible for upholding the balance of fairness in distribution of advantages and disadvantages in a community *cannot* by "punitively" repressing wrongdoers accomplish that restoration of fairness which their act, by purporting to be punishment, pretends to accomplish.) It is because private punishment is always immoral that the tradition, following Cicero,³² insisted on public authority as one of the essential preconditions for just war (meaning just offensive war). But in a world without any world government, are not states and their rulers in precisely the position of private persons? How can they punish if they are not world rulers, or even international rulers, and so lack the type of responsibility that grounds acts of punishment—responsibility for maintaining and restoring a balance of justice between wrongdoers and the law-abiding, or between wrongdoers and their victims? This difficulty is often raised in a slightly different form: how can a state or government rightly act as both judge and party? That is a fair question, which Suarez identifies and tries to answer,³³ but I think the form in which I have framed the difficulty is the more fundamental.

The issue is complicated, above all by the flexible extension of "defense" and "punishment" and their convergence or even overlap in a range of situations. Note first that a war, or a military operation, is not taken out of the class of *defensive* acts by the mere fact that it is initiated to forestall a reasonably anticipated and imminent unjust attack.³⁴ More importantly, defense is of rights and does not become inapplicable on the first success of a violation of them. If it is self-defense to resist forcibly the entry of squat-

ters into my family house, is it not self-defense to eject them forcibly when I discover them on returning home in the evening? Defensive measures seem to extend to self-help reclamation of what one has just lost.³⁵ And why should the mere temporal immediacy, or delay, of one's measures make an essential difference? Again, Vitoria, without seeking to justify the Spanish appropriation or colonization of the Americas on this ground, upheld the right of the Spanish to make war on the Amerindians *in defense of* the many likely innocent Amerindian victims of Amerindian cannibalism, human sacrifice, and euthanasia of the senile.³⁶ "For the defense of our neighbors is the rightful concern of each of us, even for private persons and even if it involves shedding blood."³⁷

Moreover, much of what the tradition says about the *punitive* function of war between polities relates not to the punishment's primary, retributive rationale but to punishment's function as a deterrent, general or special. "Without the fear of punishment to deter them from wrongdoing (*iniuria*), the enemy would simply grow more bold about invading a second time."³⁸ May not the same thought play a legitimate part in one's deliberation as a private person deciding whether or not to expel squatters from some part of one's domain? Note how Vitoria not only moves back and forth between defense and punishment, but also treats each as an aspect of the other:

The license and authority to wage war may be conferred by necessity. If, for example, a city attacks another city in the same kingdom, . . . and the king fails, through negligence or timidity, to avenge [impose retribution for] the damage done (*vindicare iniurias illatas*), then the injured . . . city . . . may not only defend itself but may also carry the war into its attacker's territory and teach its enemy a lesson (*animadvertere in hostes*), even killing the wrongdoers. Otherwise the injured party would have no adequate self-defense; enemies would not abstain from harming others, if their victims were content only to defend themselves. By the same argument, even a private individual may attack his enemy if there is no other way open to him of defending himself from harm.³⁹

Thus the conceptual boundaries between defense and punishment are somewhat blurred. Still, the distinction remains, and with it the question: why is punishment morally allowable in the state and its government, but not in the individual whose rights are not and perhaps cannot be vindicated by the state? Suarez gives the technical answer:

Just as the sovereign prince may punish his own subjects when they offend others, so he may exact retribution [*se vindicare*] on another prince or *state which by reason of some offense becomes subject to him*; and this retribution cannot be sought at the hands of another judge, because the prince of whom we are speaking has no superior in temporal affairs.⁴⁰

But the proposition I have italicized smuggles the conclusion into the premises. If this wronged state or government has no rightful human superior in secular matters, the same will be true of the offending state or government, and the proposition⁴¹ that the offense puts the offending state (morally speaking) into a state of subjection is question-begging or a fiction.

A number of recent writers have surmised that the issue was obscured from the tradition's classical writers by the notion that all Christendom was one realm, so that the wars of a state or government within that quasi-universal realm could the more readily be supposed to be analogous to the use of police power to bring to justice wrongdoers within a realm.⁴² But this hypothesis, though not altogether groundless, is scarcely satisfying; the emperor's sovereignty over Christendom was manifestly a fiction, and the existence of states outside the empire was all too well known. Moreover, the traditional position that punitive war is justified survived after the replacement of Christendom by states which everyone accepted were wholly independent sovereignties.

Without, I think, the benefit of much clear discussion among the tradition's representatives, recent witnesses to the tradition—notably Pius XII, John XXIII, and the Second Vatican Council—have spoken as if the only justifying ground for war were defense.⁴³ Several moralists who uphold the main lines of the Catholic natural law tradition argue that this is a legitimate development of the tradition, that it renders the tradition more consistent with its own principles.⁴⁴ Inasmuch as they rely on a supposed change in the nature of warfare by virtue of technological developments, their argument is unpersuasive. Many present-day wars are fought in traditional ways at more or less traditional levels of limited destructiveness. Moreover, although a world government can now be envisaged as in some sense a practical possibility (again by virtue of technological development), and although leaders and people ought to do what (if anything) they responsibly can to bring such a world government into being,⁴⁵ these considerations do not justify the conclusion that, in the meantime, states must behave precisely as if they already had a common superior, effectively responsible for maintaining the worldwide common good, on whom exclusively they must treat the police power (of bringing wrongdoers to justice) as having been devolved. If self-defense (*légitime défense*) is to be held to be the only just ground for war, it must be on the ground that the tradition (1) rightly judged that private individuals as such have no right to punish those who have wronged them, but (2) erred in supposing that independent states purporting to punish states which have wronged them are in an essentially different moral position from private persons purporting to punish people who have wronged them. Vitoria and Suarez uneasily ascribed the supposed moral difference between the positions of private persons

and independent states to “the consent of the world” and the customary positive law (*ius gentium*), not to natural law.⁴⁶ The same consent and custom grounded slavery.⁴⁷ As the customary institution of slavery came to be discerned by the tradition itself as contrary rather than supplementary to natural law, so the tradition has come (or is coming) to discern the true moral character of the custom ascribing to states the authority to levy punitive war.

OTHER DISTINGUISHING CRITERIA

Having a good ground is not the only prerequisite for justly going to war (and fighting it). *Bonum ex integra causa, malum ex quocumque defectu*; there are other conditions which must all be satisfied if one’s warring is to be justifiable. All of these further conditions are, I think, implications of the Golden Rule (principle) of fairness, rather than of the principle that one must never choose to harm the innocent. The most important of these implications is that it is unfair not only to the enemy but also to one’s own people (1) to initiate or continue a war which has no reasonable hope of success, or (2) to initiate a war which could be avoided by alternatives short of war, such as negotiation and nonviolent action.

The condition that the foreseeable side effects of going to war be not excessive (“disproportionate”) was usually stated by the tradition in connection with the justification-conditions of punitive wars. A government’s initiation of a war for the sake of retributively restoring an order disturbed by a wrong done to its own country could not be justified if the war were likely to expose that country unfairly to loss and risk of loss (for example, great risk of substantial loss, or significant risk of great loss). Indeed, it seems to be only such wars that the tradition explicitly declares to be subject to this condition.⁴⁸ But there can be little doubt that even the decision to put up a defense must be subject to the same sort of precondition. Modern restatements of the tradition which make defense the only just ground for war do treat *probability of success* and *proportionality* (of anticipated damage and costs to expected good results) as preconditions.⁴⁹

That is not to say that a military unit faced with overwhelming odds must, in fairness, surrender. Everyone knows that one unit’s willingness to fight to the last man can sometimes inflict such losses that the enemy’s overall operation and strategy is weakened or delayed and so can be defeated—its victory over the unit destroyed was Pyrrhic. And everyone knows that an isolated unit, in the dust of conflict, can rarely discern with confidence how its resistance would affect the overall outcome of the war. Military discipline is therefore not unfair in imposing a strong presumption in favor of fighting on. But, when standing alone against the enemy, those in command of the whole nation or its armed forces as a whole must

very seriously ask whether it is consistent with the Golden Rule to undertake a hopeless resistance which will impose immense losses on the combatants of both sides, on noncombatants of both nations (especially the nation attacked), and perhaps on the citizens of neutral states lying (say) in the path of the fallout.

The same sort of fairness-based considerations underlie the requirement that war be considered a *last resort* after the exhaustion of peaceful alternatives.⁵⁰ The losses accepted in a negotiated settlement, however unpalatable, must be compared with the losses that would be borne by all those likely to be destroyed or injured by the alternative option, war.

How are such comparisons and judgments of (dis)proportion to be made? Not by the simply aggregative methods taken for granted by utilitarian, consequentialist, or proportionalist ethics, which blandly but absurdly ignore the incommensurability of the goods and bads at stake in human options.⁵¹ It is a matter, rather, of adhering to the *rational* requirement of impartiality by an intuitive awareness of one's own *feelings* as one imaginatively puts oneself in the place of those who will suffer from the effects of the alternative options (not forgetting the different status of the various classes of potential sufferers, some of whom would have willed and initiated the war and thus accepted the risk). As the US Catholic bishops indicate, to identify proportionality one must "tak[e] into account" both the expected advantages and the expected harms, but with the purpose (not of measuring incommensurables but rather) of "assess[ing] the justice of accepting the harms," an assessment in which "it is of utmost importance . . . to think about the poor and the helpless, for they are usually the ones who have the least to gain and the most to lose when war's violence touches their lives" (not forgetting, however, their fate in an unjust peace).⁵² As we shall see when we consider unfairness ("disproportion") in the conduct of military operations, the deliberations and conduct of a party to the conflict will provide a referent against which to assess the requirements of impartiality as they bear on other conduct of that same party.

THE CONDUCT OF WAR

All the moral requirements which bear on the decision to go to war apply also to the willingness to carry on fighting and to the conduct of the war in particular military operations. Indeed, they apply also to the adoption of a deterrent strategy in the hope that war will thereby be averted.⁵³ The distinction between *ius ad bellum* and *ius in bello* is scarcely part of the Catholic natural law tradition. Nor is it a helpful distinction. True, it teaches that the rightness of a decision to fight does not entail the rightness of everything done in fighting; but that is more fundamentally taught by the more general principle, applicable to all decisions and actions, *bonum ex integra*

causa, malum ex quocumque defectu: every choice must satisfy all moral requirements.

So it must be clear at the outset that, in the Catholic natural law tradition, there can be no question of different moral constraints pulling against one another. Each of the constraints is a necessary condition of justifiability, and compliance with one or some of them is never a sufficient condition. The combatants, like the leaders who opted for war, must have upright intentions: their motivations must be free from unfair bias and cruelty, they must intend to fight on some just ground, they must not be willing to impose unfair devastation. And, just as their leaders in deliberating about whether to go to war must not intend the death of innocents (noncombatants), either as an end (malice and revenge) or as a means (of breaking the enemy's will to fight, for example, or of bringing neutrals into the war), so, too, those who plan and carry out military operations are subject to precisely the same constraint, the same exceptionless requirement of respect for (innocent) human life. So too, indeed, are those who participate in the public policy and act of maintaining a strategy of deterrence involving threats which they hope will never (but could and, as far as the policy is concerned, would) be carried out.⁵⁴

Curiously, Aquinas's little treatise *de bello* makes no reference to the exceptionless moral norm that innocents must not be deliberately killed. But there is no doubt that he held that norm to be applicable to war. For the norm itself is one which, a little later in the same part of the *Summa theologiae*, he clearly affirms and defends as exceptionless.⁵⁵ And, as we shall see in the next section, he explicitly affirms (with the whole tradition) that such norms remain requirements of reason and thus of morality whatever the circumstances. As if to make the point economically, his treatment *de bello* affirms the exceptionless applicability to war of another moral norm which many people violate in war, indeed violate perhaps even more freely and with even fewer qualms of conscience: the moral norm excluding all lying (as distinct from subterfuges which do not involve affirming as true what one knows to be untrue).⁵⁶ And the whole tradition after him peacefully accepts the absolute immunity of noncombatants from deliberate attack, that is, attack intended to harm them either as an end or as a means to some other end.⁵⁷

Combatants are all those whose behavior is part of a society's use of force; if we are engaged in just defense, enemy combatants are those whose behavior contributes to their society's wrongful use of force. Anyone whose behavior during warfare could not be used to verify the proposition, "That society is at war with us," is clearly a noncombatant. But some of those people whose wartime behavior could be used to verify that proposition (little old ladies knitting khaki socks, for example) nevertheless contribute so little, and so merely symbolically, to the acts of war whose

violation of just order is ground for war that they are reasonably considered noncombatants. The principle of discrimination—that one must not make noncombatants the object of attack as one makes combatants—requires one to respect the distinction between combatants and noncombatants, but does not presuppose that drawing the distinction is easy. There are in fact many borderline cases: farmers, workers in public utilities, members of fire brigades, and the like, who engage in certain performances specified by war and essential to it, yet very little different from their peacetime occupations and essential to the survival and well-being of all who are certainly noncombatants. Some theorists in the tradition have called them combatants, others in the tradition have called them noncombatants. But, on any view, the population of a political community includes many people who are certainly noncombatants; their behavior would in no way help to verify that the society is engaged in operations of war against another society. They include in particular those who cannot take care of themselves, together with those whose full-time occupation is caring for the helpless. The behavior of people of these sorts contributes nothing to a society's war effort, but actually diverts resources which might otherwise be used in that effort.

Noncombatants, then, are innocent; that is, they are not *nocentes*, not engaged in the operations which most of the tradition assimilated to capital crimes and which the newer conception proposed by (say) Grisez treats as activities warranting forcible resistance in self-defense. Noncombatants may not be directly harmed or killed; “directly” here means “as a means or as an end.”⁵⁸ (Does it follow that combatants may be directly killed? See the last section below.) But, without intending any harm to noncombatants, one may choose to plan and carry out military operations which one knows will in fact cause noncombatants injury or death; and such a nonhomicidal choice can be justified provided that the choice is otherwise fair and well motivated (*malum ex quocumque defectu*). The proviso just mentioned is often expressed as “provided that the death-dealing or other harmful effects on noncombatants are not disproportionate.” Here “proportionate” can have a rational meaning which it could not have if it referred simply to sheer magnitude; its rational meaning is *unfair*, imposed by a biased and partial, not an impartial, measure and judgment. The standard is the Golden Rule, and I have sketched in the preceding section the ways in which it gains content. The basic measure is: what people do, or are unwilling to do, to themselves and their friends. For example: In 1944, Allied air forces followed a policy of precision bombing when attacking German targets in France, and a policy of blind or other imprecise bombing when attacking German military targets in Germany.⁵⁹ Thus they showed themselves willing to impose on German noncombatants a level of incidental harm and death which they were not willing to impose on French civilians.

This was unfair; the collateral damage to German civilians was, therefore, disproportionate.

Are there prudential as well as moral constraints on the conduct of war once it has begun? Here I take “prudential” in its modern meaning: in my/our own interests. Doubtless sane leaders will regulate their decisions with an eye to the consequences for themselves and their community. But the tradition is quite clear that there is no coherent and nonarbitrary prudence apart from a morally regulated, indeed morally directive, prudence which respects *all* the requirements of reasonableness, including fairness and respect for the humanity of *all* persons in every community. So, in the final analysis, it is futile and misleading to investigate a prudence distinct from morality. Machiavellianism, for all its impressive rules of practice and its attractions to the emotions of self-preference and the aesthetics of technique, is a mere rationalization which cannot withstand rational critique. For it cannot justify its horizon, its presupposed demarcation of a range of persons or communities whose well-being it will then take as the measure of prudentially “right” action. The so-called paradoxes of nuclear deterrence are merely one exemplary sign of the unreasonableness of every prudence which falls short of the requirements of morality’s first principle.

MORALITY IN EXTREMITY

The remarks in the preceding paragraph indicate the tradition’s fundamental response to the question of morality in extremity. For “extremity” denotes the grave and imminent danger that *we* will be overwhelmed or destroyed (unless we take certain measures). The tradition does not suggest that the requirements of morally decent deliberation take no account of such a danger. On the contrary, all the requirements of the Golden Rule are liable to be profoundly affected by the presence and degree of such risks.

The so-called rules of war include many norms which are valid and binding because they have been *adopted* (posited) by custom or agreement or enactment by some body empowered by custom or agreement to make such enactments. This is true not only of modern international conventions, but also of much in the tradition’s moral treatises on war, where such norms are described as *de iure gentium* (as distinct from *de iure naturali*).⁶⁰ Now, the moral force of positive law, including the *ius gentium* inasmuch as it is positive law, rests on the Golden Rule (taken together with the rational requirement that one be concerned for the well-being of others and thus of the communities to which one belongs). Having taken the benefits of others’ compliance with the rules, I cannot fairly renege on one of those rules when it requires compliance from me. But the principle articulated in the preceding sentence, though reasonable and usually deci-

sive, is not absolute. That is to say, it does not apply exceptionlessly. For if the situation now is such that, had it obtained when compliance with some rule by others was in issue, I would not have wanted and expected (demanded) those others to comply, it can be fair for me to withhold my compliance; I can fairly do as I truly would have been willing for others to do in a like case.

So, in principle, those rules of war which depend on custom, agreement, or enactment are liable to be set aside in extremity. On the other hand, the tradition holds that where a rule, though positive (*de iure gentium*, not *de iure naturali*), has been adopted precisely *for* and *with a view to* regulating conduct in situations of extremity, it cannot rightly be set aside. Thus, since the rules of fair trial for a capital crime are designed precisely for the extremity in which persons on trial for such crimes find themselves, those who are convicted on perjured testimony must patiently endure death,⁶¹ and judges who know the truth but after every effort can find no legal way of proving it (or of excluding the false evidence) must follow the rules of evidence and sentence to death someone whom they know to be innocent.⁶² So there may well be rules of war which, though positive, are not subject to dispensation in emergency, since they were adopted precisely for that type of extremity.

Moreover, not all “rules of war” are merely positive. Some are true implications of the basic requirements of practical reasonableness, which are morality’s (natural law’s) foundational principles. And some of those basic requirements entail exceptionless moral norms. What Kant identified as the requirement that one treat human persons always as ends in themselves and never as mere means is a bundling together of the requirement that one never meet injury with injury (even when one could do so fairly), which excludes all acts of mere revenge, and the requirement that one not do evil (such as intentionally to destroy, damage, or impede a basic human good) for the sake of good—each requirement being, in turn, an implication of the first moral principle of openness to integral human fulfillment (love of neighbor as oneself). One of the exceptionless moral norms entailed by the requirement that evil not be done for the sake of good is the norm which excludes intending to kill, and intentionally killing, any (innocent) human being.

But, at least in situations of extremity, would it not be the lesser evil to kill a few innocents (say hostage children) to prevent the extermination of thousands and the utter ruin of a decent community? The whole tradition, while very attentive to the need to prevent bad consequences and to the bearing of likely bad consequences on duties of fairness, denies the claim that reason can identify such a killing of the innocent as the lesser evil.⁶³ It accepts the Socratic, Platonic, and Catholic maxim that it is better (a lesser evil) to suffer wrong than to do wrong,⁶⁴ and rejects as an understandable

but ultimately unreasonable temptation the thought⁶⁵ that it is better for one innocent man to be framed and put to death than for the whole people to perish. It accepts that self-defense is a situation of necessity,⁶⁶ but rejects as unreasonable and morally false⁶⁷ the Roman and Cromwellian maxim that necessity knows no law. Or rather, the maxim is given its proper, subordinate role: necessity (that is, great danger) can entitle one to make an exception to rules adopted for human convenience, or concerning human goods which are not basic; thus rules about fasting and sabbath observance, or about rights of property, can be overridden “by necessity,” as fairness suggests and permits.⁶⁸ But the basic goods of the human person must be respected unconditionally.

One can find in the tradition occasional statements which clearly face up to the gravity of the matter:

In such a situation, the law of God, which is also the rule of reason, makes exceptionally high demands. . . . The principles the Church proclaims are not for some ideal or theoretical world or for humanity in the abstract. They speak directly to the consciences of men and women in this world. They are principles that can on occasion demand heroic self-sacrifice of individuals and nations. For there are situations, for example in war, in which self-defense could not be effective without the commission of acts which must never be done, whatever the consequences. Innocent hostages, for example, must never be killed.⁶⁹

But such statements are less frequent than one would think needful to prepare people to live up to the taxing responsibilities of suffering wrong rather than doing it in situations where everything is or seems to be at stake.

To be sure, the tradition’s adherence to exceptionless moral norms is reinforced by faith in God’s providence, redemption, and promise of eternal salvation. But it is not logically dependent upon that faith. Nor is it, ultimately, a legalism, in which exceptionless rules might be promoted for fear that allowing exceptions would have bad consequences (for example, by abusive extensions of the permission). It understands itself, rather, as an unconditional adherence to the truth about what reason requires. An understanding and defense of the tradition thus depends upon a critique of claims that reason does not warrant these (or any) exceptionless specific norms.⁷⁰

RESISTANCE TO POLITICAL AUTHORITY

The tradition is not content with so cloudy, euphemistic, and characteristically modern a term as “resistance.” The Resistance was trying to overthrow German rule in France, and in conscientious deliberations such a venture deserves to be known for what it is, and distinguished from disobedience, “civil” or otherwise.

The tradition's reflections on the forcible overthrow of governments proceed in the same dialectic of private right and public authority, of defense and punishment, as its reflections on war between nations. For such overthrow is truly a warlike venture. There are two main sorts of unjust government which might rightly be overthrown: (1) governments which seized power unjustly and by force and have not been legitimized by effluxion of time and absence of alternatives, and (2) governments which came to power lawfully but govern with manifest gross injustice (looting, murdering, framing, etc.).⁷¹ If a government of either type pursues certain private citizens in an attempt to kill or mutilate them, they can rightly use force in the exercise of their rights of self-defense, and doing so is not necessarily made unacceptable by the fact that it will have the side effect of killing even the supreme ruler.⁷² But no private citizen, as such, can rightly undertake to kill any or all of the rulers, as punishment (or revenge) for their wrongdoing, however wicked, any more than private citizens can rightly kill a well-known murderer on the score that they are administering capital punishment (or vengeance).⁷³

Still, might not such a citizen claim to be defending the community against the future crimes of the government? In the case where the government had come to power justly or acquired a moral entitlement to govern, the answer given by the tradition was: yes, if the wrongs such a citizen seeks to prevent are violent, but not otherwise; for in any other case, the attempt amounts to levying offensive war, which is never within private authority, any more than a private citizen can rightly resort to personal violence to incapacitate a forger. In the case where the government came to power illegitimately and remains illegitimate, the tradition is willing to treat the government's acts of ruling, however peaceful in themselves, as amounting to a continuing act of violent injustice against the community (banditry). Accordingly, unless the community by some communal act makes it clear that it wishes no such deliverance, any private individual has the tacit and assumed public authority and constructive consent needed to seek an illegitimate government's violent overthrow, not as an act of punishment but as defense of self, country, and every innocent member of the community.⁷⁴ Such an act must, of course, satisfy all the other relevant requirements of proper motivation, exhaustion of alternatives, prospect of success, and fairness in accepting the foreseeable bad side effects.⁷⁵

The risk that any attempt to overthrow a government by force will have very bad side effects is often great. The tradition, for the most part, inculcates caution and emphasizes the general desirability of preferring nonviolent or "passive" forms of resistance, always within the context of a wider teaching that government and positive law create moral obligations which, though by no means absolute or indefeasible or invariably strong, are significant and prevail over the contrary inclinations and desires of subjects in

all cases save where the exercise of governmental power in question is certainly unjust. The tradition also recognizes other cases of justifiable disobedience, short of revolutionary violence intended to overthrow—that is, acts of war against—an unjust regime.

First, there is the important class of cases where administrative or legal requirements demand the performance of immoral acts (to surrender Jews to the Nazi authorities, for example). Violation of such requirements is both permissible and obligatory.

Second, government property may be specifically dedicated to wicked activities: concentration camps, slave ships, abatoria, human-embryo experimentation equipment, nuclear weaponry deployed for deterrence by a strategy involving city-swapping and final countervalue retaliation, etc. In circumstances where destroying the property and impeding the evil activities would be likely to save some persons from serious injustice, those actions would be justified.

Third, there is civil disobedience strictly so called. This involves essentially (1) overt violation of a law (2) to express one's protest against that law, or against something public closely connected with some application of that law, together with (3) ready submission to the law's sanctions (a submission not morally required in the other classes of justifiable disobedience). The violation must not involve doing anything otherwise immoral, and its manner and circumstances must make it clear to observers not only that it *symbolizes* opposition to some important and clearly identified matter of law or policy, but also that this opposition seeks justice, not advantage. Since civil disobedience must not involve doing anything otherwise immoral, its justification does not cover use of force against any person. Nor does it cover the destruction of property which is at all closely connected with the well-being of individual persons who would be damaged by its destruction, removal, or temporary or permanent inaccessibility. Above all, it shuns the maxim "Evil may be done that [greater] good may come of it"; indeed, that is the maxim which underpins most (though not all) attempted justifications of the laws or policies or proposals which are the objects of the civilly disobedient protest. So-called civil disobedience will be corrupted and corrupting if the campaigners subscribe to that maxim and so are willing to do real harm, not in self-defense but to advance their cause. The "harms" one does in justifiable civil disobedience must be actions which, in their full context (as set out in the definition just given), are of a type accepted by one's upright fellow citizens as essentially no more than vivid expressions of authentic moral-political concerns, and thus as not truly harms. The essential analogy here is with the blows given and received on the football field, or the touchings and jostlings in a rush-hour crowd; in their full context these are not harms, even though in other contexts they would constitute assaults.⁷⁶

The most fundamental point and justification of civil disobedience is to *show* that the wickedness of the laws or policies in question takes them outside the ordinary web of politics and law, and undermines the very legitimacy of the state or government itself—a legitimacy founded on justice, not on calculations of advantage in which the lives of innocents might be directly sacrificed in the interests of others.

ATTITUDES TOWARD WAR AND NONVIOLENCE

The tradition emerged and flourished in coexistence with a body of customary laws (*ius gentium*) which it in part reformed but in part accepted with a complacency which now seems disconcerting. But at no time was the tradition an apologia for war. Rather, its thrust has been, and ever more clearly is, to teach that wars are *certainly unjustified* unless a number of conditions are satisfied. It involves no belief that many wars are just, or that the conduct of any war is in fact free from wicked injustice. Even in teaching (as it used to do but now scarcely does) that offensive war could be justified to punish guilty rulers and their agents, the tradition required that war be the last resort, initiated only after communications, negotiations, and where practicable a ceding of rights for the sake of peace.

The tradition is still developing, on the basis of its own fundamentals. Those fundamentals entail, I think, that war can be justified only as defense. In the absence of a world government, no state or political community or ruler can rightly claim the authority to punish; the custom on which that authority was formerly rested⁷⁷ should now be regarded as immoral and ineffective. To purport to exercise such authority, in these circumstances, is to do no more than to reproduce the practice of feuding, writ large. And if there were a worldwide government, its rulers' justifiable powers against communities would be police powers: to take steps to bring offending individuals to justice, and to defend themselves and overcome resistance in the course of taking those steps, but not to administer punishment to whole communities, or to punish individuals otherwise than by impartial judicial trial and public sentence.

As it reaches this point in its development, one can discern that the tradition's fundamentals implicitly entail the rejection of a belief which is explicit not only in the tradition but also in both classic pacifism and "political realism"—the belief that war must involve *intending to kill*. The analysis involved in Aquinas's discussion of private self-defense entails, as Aquinas makes clear, that defensive acts foreseen to be likely or even certain to kill can nonetheless be done without any intent to kill. One's choice in choosing such an act of defense need only be to stop the attack, accepting as a side effect the attacker's death, unavoidably caused by the only available effective defensive measure. Such choices do not violate the ex-

ceptionless moral norm excluding every choice to destroy a basic human good. They will be justifiable choices only if they also involve no violation of any other requirement, especially the requirement of fairness: a deadly deed cannot be fairly chosen to fend off a harmless blow; those who are themselves acting unjustly cannot fairly resort to deadly force to resist someone reasonably trying to apprehend them.

And the structure of the action of political societies can be the same as that of individuals' acts of self-defense. Deadly deeds can be chosen, not with the precise object of killing those (other societies and their members) who are using force to back their challenge to just order, but simply to thwart that challenge. If the social act is limited to the use of only that force necessary to accomplish its appropriate purpose, the side effect of the death of those challenging the society's just order can rightly be accepted.⁷⁸ The distinction between innocents (combatants) and noninnocents (non-combatants) remains: lethal force may rightly be used against persons whose behavior is part of the enemy society's wrongful use of force (against combatants), but not against others. The innocent (noncombatants, those not participating in the use of force against just order) cannot rightly be made the objects of lethal force.

The tradition, even as substantially developed and refined by the exclusion of punitive justifications for war and of intent to kill in war, wholly excludes pacifism—that is, the claim that lethal force can never be rightly used. Pacifism is not to be found in the New Testament⁷⁹ (in which the Catholic understanding of natural law already emerges), read as an integrated whole. What does there emerge is the vocation of some individuals and groups to nonviolence (unconditional abstention from such use of force) in witness to the truths that peace, like all true goods, is a gift from above—of divine grace working in a privileged way by healing mercy and reconciliation—and that war, though its point is peace, can never be the efficient cause of peace.

NOTES

1. Tacitus *Agricola* 30, imagining a speech by a British chieftain: "They [the Romans] make a wilderness and call it peace."

2. Cf. Augustine *De civitate Dei* 19.12.

3. Augustine *De civitate Dei* 19.13: "Pax omnium rerum, tranquillitas ordinis. Ordo est parium dispariumque rerum sua cuique loca tribuens dispositio."

4. Aquinas *Summa theologiae* II-II q. 37 aa. 1 & 2 (discordia in corde).

5. Aquinas *Summa theologiae* II-II q. 38 aa. 1 & 2 (contentio in ore).

6. Aquinas *Summa theologiae* II-II q. 41 aa. 1 & 2 (rixa).

7. Aquinas *Summa theologiae* II-II q. 42 aa. 1 & 2 (seditio).

8. The tradition is scarcely concerned with formulating a definition of war more satisfying than Cicero's *decertare per vim*, "contending by force" (*De officiis* 1.11.34).

9. On the many forms of war in a general sense, see Francisco Suarez *De bello prol.*, in Gwladys L. Williams et al., trans., Suarez, *Selections from Three Works* (Oxford: Oxford University Press, 1944), 800.

10. “We wage war to gain peace. Be peaceful, therefore, even while you are at war, so that in overcoming those whom you are fighting you may bring them to the benefits of peace.” Augustine *Epist. 189 ad Bonifacium* 6, cited in Aquinas *Summa theologiae* II-II q. 40 a. 1 ad 3. See also II-II q. 29 a. 2 ad 2.

11. “Perfect peace consists in the perfect enjoyment of the supreme good, . . . the rational creature’s last end.” *Summa theologiae* II-II q. 29 a. 2 ad 4.

12. See, for example, Germain Grisez, Joseph Boyle, and John Finnis, “Practical Principles, Moral Truth, and Ultimate Ends,” *American Journal of Jurisprudence* 32 (1987), 99–151 at 125–31.

13. See Aquinas *Summa theologiae* I-II q. 100 a. 3 ad 1.

14. In Aquinas *Summa theologiae* II-II q. 41 (de bello), and embedded in qq. 34–43 (vices opposed to caritas); see prol. to q. 43. Suarez *De bello* disp. 13 in tract. 3 (*De caritate*) in his *De triplice virtute theologica* (1621).

15. Aquinas *Summa theologiae* II-II q. 29 a. 3 ad 3.

16. See note 10 above; also Plato *Laws* 1.628d–e; 7.803c–d; Aristotle *Nicomachean Ethics* 10.7.1177b5.

17. Leo XIII, Apostolic Letter *Nostis errorem*, in *Acta Leonis XIII*, vol. 9 (Rome, 1890), 48: “There should be sought for peace foundations both firmer and more in keeping with nature: because, while it is allowed consistently with nature to defend one’s right by force and arms, *nature does not allow that force be an efficient cause of right*. For peace consists in the tranquillity of order, and so, like the concord of private persons, that of rulers is grounded above all in justice and charity” (my trans.; emphasis added).

18. The example, aside from the military purpose, is from Aristotle and Aquinas: Aquinas *In II Phys.* lect. 8 (no. 214); *In VII Meta.* lect. 6 (no. 1382); *In XI Meta.* lect. 8 (nos. 2269, 2284).

19. Alexander of Hales *Summa theologica* 3.466, carefully analyzed in Jonathan Barnes, “The Just War,” in Norman Kretzmann, Anthony Kenny, and Jan Pinborg, eds., *The Cambridge History of Later Medieval Philosophy* (Cambridge: Cambridge University Press, 1982), 773–82.

20. Aquinas *Summa theologiae* II-II q. 40 a. 1c, quoting (in a slightly garbled form) Augustine *Quaestiones in Heptateuchum* 6.10; and see Barnes, “The Just War,” 778.

21. Suarez *De bello* 4.1 (Williams, trans., p. 816).

22. “Even when a legitimate authority declares war, and there is *causa iusta*, it can be the case that the war is made immoral/illicit by wrongful *intentio*.” Aquinas *Summa theologiae* II-II q. 40 a. 1c.

23. See John Finnis, Joseph Boyle, and Germain Grisez, *Nuclear Deterrence, Morality and Realism* (Oxford: Oxford University Press, 1987), 120–23, 131, 288, 343–44; John Finnis, “Persons and Their Associations,” *Proceedings of the Aristotelian Society*, supp. vol. 63 (1989), 267–74.

24. “Nocendi cupiditas, ulciscendi crudelitas, impacatus et implacabilis animus, feritas rebellandi, libido dominandi, et si qua similia, haec sunt quae in bellis iure culpantur.” Augustine *Contra Faustum* 22.74; Aquinas *Summa theologiae* II-II q. 40 a. 1c.

25. See, for example, Plato *Laws* 4.715e–716d; cf. Plato *Republic* 6.500c.

26. Aquinas *Summa theologiae* II-II q. 40 a. 1c: “Sicut licite defendunt eam [republicam] materiali gladio contra interiores quidem perturbatores, dum malefactores puniunt, secundum illud Apostoli, ‘Non sine causa gladium portat: minister enim Dei est, vindex in iram ei qui male agit,’ ita etiam gladio bellico ad eos pertinet rempublicam tueri ab exterioribus hostibus.”

27. Suarez *De bello* 1.6 (Williams, trans., p. 804); cf. Vitoria *De iure belli* (1539) sec. 13; trans. in Vitoria, *Political Writings*, ed. A. Pagden and A. Lawrance (Cambridge: Cambridge University Press, 1991), 303.

28. Vitoria *De iure belli* sec. 1 (Pagden and Lawrance, eds., p. 297); Suarez *De bello* 1.4, 6 (Williams, trans., pp. 803, 804).

29. Vitoria *De iure belli* secs. 1, 44 (Pagden and Lawrance, eds., pp. 297, 319; but note that the editors often mistranslate *vindicatio* and its cognates as “revenge”; even “vengeance” is, in modern English, misleading as a translation of *vindicatio*); Suarez *De bello* 1.5 (Williams, trans., pp. 803–4).

30. Thus Vitoria *De iure belli* sec. 3 (Pagden and Lawrance, eds., p. 299): “Any person, even a private citizen, may declare and wage defensive war.”

31. Suarez *De bello* 2.2 (Williams, trans., p. 807) and 4.7 (p. 820); cf. Vitoria *De iure belli* sec. 5 (Pagden and Lawrance, eds., p. 300). Behind them, Augustine *De civitate Dei* 1.17, 21. Contrast the non-Catholic tradition following Grotius *De iure belli ac pacis* (1625) 2.20.8.2, in Grotius, *The Law of War and Peace*, trans. Francis W. Kelsey (Oxford: Oxford University Press, 1925), p. 472, and thence Locke, *Two Treatises of Civil Government* (1689–90), 2.2.7.

32. Cicero *De officiis* 1.11.36–37.

33. Suarez *De bello* 4.6, 7 (Williams, trans., p. 819).

34. This is denied by some; for example, A. Ottaviani, *Compendium iuris publici ecclesiastici*, 4th ed. (Vatican Polyglot Press, 1954), 88.

35. Vitoria *De iure belli* sec. 3 (Pagden and Lawrance, eds., p. 299); contrast, however, sec. 5 (p. 300) and Vitoria *De bello: On St. Thomas Aquinas, Summa theologiae, Secunda secundae, Question 40*, in James Brown Scott, ed., *Francisco de Vitoria and His Law of Nations* (Oxford: Oxford University Press, 1934), cxvi: “It is impermissible for a private person to avenge himself or to reclaim his own property save through the judge.”

36. Vitoria “Lecture on the Evangelization of Unbelievers” (1534–35) para. 3, in *Political Writings*, 347; “On Dietary Laws, or Self-Restraint” (1538), in *Political Writings*, 225–26; *De Indis* (1539) para. 15, in *Political Writings*, 288–89.

37. Vitoria “Lecture on the Evangelization of Unbelievers” 347.

38. Vitoria *De iure belli* sec. 1 (Pagden and Lawrance, eds., p. 298); see also sec. 5 (p. 300).

39. Vitoria *De iure belli* sec. 9 (Pagden and Lawrance, eds., p. 302).

40. Suarez *De bello* 2.1 (Williams, trans., p. 806, emphasis added).

41. For example, Suarez *De bello* 2.3 (Williams, trans., p. 807).

42. Barnes, “The Just War,” 776–77 and 775 n. 23; Anthony Regan, *Thou Shalt Not Kill* (Dublin: Mercier, 1979), 77–79; Finnis, Boyle, and Grisez, *Nuclear Deterrence, Morality and Realism*, 315 n. 3; Germain Grisez, *Living a Christian Life* (Quincy, IL: Franciscan Press, 1993), ch. 11.E.3.b.

43. Pius XII, Christmas Message (24 Dec. 1944), *Acta Apostolicae Sedis* 37 (1945),

18, teaches that there is a duty to ban “wars of aggression as legitimate solutions of international disputes and as a means toward realizing national aspirations.” Pius XII, Christmas Message (24 Dec. 1948), *Acta Apostolicae Sedis* 41 (1949), 12–13, teaches: “Every war of aggression against those goods which the Divine plan for peace obliges men unconditionally to respect and guarantee, and accordingly to protect and defend, is a sin, a crime, and an outrage against the majesty of God, the Creator and Ordainer of the world.” John XXIII, *Pacem in terris*, *Acta Apostolicae Sedis* 55 (1963), 291, teaches: “In this age which boasts of its atomic power, it no longer makes sense to maintain that war is a fit instrument with which to repair the violation of justice.” Noting Pope John’s point, Vatican II explains how “the horror and perversity of war are immensely magnified by the multiplication of scientific weapons,” and draws the conclusion: “All these considerations compel us to undertake an evaluation of war with an entirely new attitude.” *Gaudium et spes* (1965), para. 80, with note 2 (note 258 in the Abbott ed.). In para. 79, the Council states: “As long as the danger of war remains and there is no competent and sufficiently powerful authority at the international level, governments cannot be denied the right to *legitimate defense* once every means of peaceful settlement has been exhausted. Therefore, government authorities and others who share public responsibility have the duty to protect the welfare of the people entrusted to their care and to conduct such grave matters soberly. But it is one thing to undertake military action for the *just defense of the people*, and something else again to seek the subjugation of other nations” (emphasis added). None of these statements unambiguously repudiates the tradition’s constant teaching that punitive and, in that sense, offensive war can be justified.

44. Grisez, *Living a Christian Life*, ch. 11.E.3.b; Augustine Regan, “The Worth of Human Life,” *Studia Moralia* 6 (1968), 241–43; Ottaviani, *Compendium iuris*, 88.

45. John XXIII, *Pacem in terris*, paras. 43–46, in *Acta Apostolicae Sedis* 55 (1963), 291–94.

46. Vitoria *De iure belli* sec. 19 (Pagden and Lawrance, eds., p. 305) and sec. 46 (p. 320); but cf. sec. 5 (p. 300), seeking to derive the punitive authority of states from their self-sufficiency; Suarez *De legibus* (1612) 2.19.8 (Williams, trans., p. 348):

The law of war—in so far as that law rests upon the power possessed by a given state . . . for the punishment, avenging (*vindicandam*), or reparation of an injury inflicted upon it by another state—would seem to pertain properly to the *ius gentium*. For it was not indispensable by virtue of natural reason alone that the power in question should exist within an injured state, since men could have established some other mode of inflicting punishment, or entrusted that power to some prince and quasi-arbitrator with coercive power. Nevertheless, since the mode in question, which is at present in practice, is easier and more in conformity with nature, it has been adopted by custom (*usu*) and is just to the extent that it may not rightfully be resisted. In the same class I place slavery.

47. Suarez *De legibus* 2.19.8 (Williams, trans., p. 348).

48. See, for example, Suarez *De bello* 3.8 (Williams, trans., p. 821).

49. Pius XII, Address to Military Doctors (19 Oct. 1953) *Acta Apostolicae Sedis* 45 (1953), 748–49; United States National Conference of Catholic Bishops, *The Chal-*

lenge of Peace, Pastoral Letter of 3 May 1983 (Washington DC: US Catholic Conference, 1983), paras. 98–99.

50. *The Challenge of Peace*, para. 96 (exhaustion of peaceful alternatives).

51. See Finnis, Boyle, and Grisez, *Nuclear Deterrence, Morality and Realism*, ch. 9.

52. *The Challenge of Peace*, para. 105.

53. Finnis, Boyle, and Grisez, *Nuclear Deterrence, Morality and Realism*, esp. ch. 4.

54. See Finnis, Boyle, and Grisez, *Nuclear Deterrence, Morality and Realism*, ch. 5, on the impossibility of bluff in a complex society.

55. Aquinas *Summa theologiae* II-II q. 64 a. 6.

56. Aquinas *Summa theologiae* II-II q. 40 a. 3; see also q. 110 a. 3. Likewise Suarez *De bello* 7.23 (Williams, trans., p. 852).

57. Vitoria *De iure belli* secs. 34–37 (Pagden and Lawrance, eds., pp. 314–17); Suarez *De bello* 7.6, 15 (Williams, trans., pp. 840, 845); *The Challenge of Peace* (n. 49 above), paras. 104–5.

58. Thus “direct” killing of the innocent is explained as killing either as an end or as a means by Pius XII (12 Nov. 1944, in *Discorsi e radiomessaggi* 6: 191–92); by Paul VI (*Humanae vitae* [1968], n. 14); and by the Congregation for the Doctrine of the Faith (*De abortu procurato*, 18 Nov. 1974, para. 7; *Donum vitae*, 22 Feb. 1987, n. 20). For similar explanations of “direct” in terms of “as an end or as a means,” see Pius XII, *Acta Apostolicae Sedis* 43 (1951), 838 (killing) and 843–44 (sterilization), and *Acta Apostolicae Sedis* 49 (1957), 146 (euthanasia).

59. Finnis, Boyle, and Grisez, *Nuclear Deterrence, Morality and Realism*, 39–40, 264–65, 271–72. The attacks to which I am here referring are, of course, not the regular British obliteration or “area” bombing raids of 1942–45, directed at cities and their inhabitants as such, but attacks on railway yards or on the submarines congregated at Kiel, etc.

60. For example, Vitoria *De iure belli* sec. 19 (Pagden and Lawrance, eds., p. 305); Suarez *De bello* 7.7 (Williams, trans., pp. 820–41) and, very clearly and fundamentally, *De legibus* 2.19.8 (quoted above, n. 46).

61. Suarez *De bello* 9.5 (Williams, trans., p. 859).

62. Aquinas *Summa theologiae* II-II q. 64 a. 6 ad 3; q. 67 a. 2.

63. On the killing of innocent hostages, see Vitoria *De iure belli* sec. 43 (Pagden and Lawrance, eds., p. 319).

64. Plato *Gorgias* 508e–509d; Vatican II, *Gaudium et spes*, para. 27; see John Finnis, *Fundamentals of Ethics* (Oxford: Oxford University Press and Washington, DC: Georgetown University Press, 1983), 112–20; Finnis, *Moral Absolutes* (Washington, DC: Catholic University of America Press, 1991), 47–51.

65. Articulated for the tradition in John 1:50; 18:14.

66. Vitoria *De iure belli* secs. 1 (Pagden and Lawrance, eds., p. 298), 19 (p. 305); Suarez *De bello* 1.4 (Williams, trans., p. 803); 4.10 (p. 823).

67. See Finnis, *Moral Absolutes*, 51–55; Finnis, Boyle, and Grisez, *Nuclear Deterrence, Morality and Realism*, ch. 9.

68. Grotius, though not Catholic, states the tradition accurately enough: “‘Necessity,’ says Seneca, . . . ‘the great resource of human weakness, breaks every law,’ meaning, of course, every human law, or law constituted after the fashion of human

law.” *De iure belli ac pacis* 2.2.6.4 (Kelsey, trans., pp. 193–94). In 1.4.7.1 (pp. 148–49), he exemplifies the latter category by pointing to the divine law of sabbath rest, subject to a tacit exception in cases of extreme necessity. See also 3.1.2.1 (p. 599). In Aquinas, the maxim *necessitas non subditur legi*, necessity is not subject to the law, is used just to make the point that, in an emergency so sudden that there is no time to consult authorized interpreters, it is permissible for the subjects to give to the law an interpretation that they think would have been approved by the lawmaker (assumed to be a morally upright lawmaker). “Keep the city gates shut,” for example, can be regarded as subject to an interpretative exception “except to admit your own army in flight from the battlefield.” *Summa theologiae* I-II q. 96 a. 6c & ad 1.

69. Archbishops of Great Britain, “Abortion and the Right to Live,” 24 Jan. 1980, para. 24.

70. Such a critique is available in, for example, Finnis, *Moral Absolutes*.

71. Suarez *De iuramento fidelitatis regis Angliae* (1613) 4.1 (Williams, trans., p. 705).

72. Suarez *De iuramento fidelitatis* 4.5 (Williams, trans., p. 709). As always, the side effects of the ruler’s death or overthrow remain to be assessed for the fairness or unfairness of incurring them.

73. Suarez *De iuramento fidelitatis* 4.4 (Williams, trans., p. 708).

74. Suarez, *De iuramento fidelitatis* 4.11–13 (Williams, trans., p. 714). Aquinas, in his youthful *Commentum in libros Sententiarum Petri Lombardi* II d. 44 q. 2 a. 2c, treats the killing of Julius Caesar as justifiable on this basis.

75. Aquinas *Commentum in libros Sententiarum Petri Lombardi* 4.7–9. “The Church’s Magisterium admits [recourse to armed struggle] as a last resort to put an end to an obvious and prolonged tyranny which is gravely damaging the fundamental rights of individuals and the common good.” Congregation for the Doctrine of the Faith, *Libertatis conscientiae*, Instruction on Christian Freedom and Liberation, 22 Mar. 1986, para. 79.

76. See further Finnis, Boyle, and Grisez, *Nuclear Deterrence, Morality and Realism*, 354–57.

77. Vitoria *De iure belli* sec. 19 (Pagden and Lawrance, eds., p. 305); see the quote from Suarez above, n. 46.

78. See further Finnis, Boyle, and Grisez, *Nuclear Deterrence, Morality and Realism*, 309–19.

79. See Grotius *De iure belli ac pacis* 1.2.6–8 (Kelsey, trans., pp. 61–81).